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Case Number: 23SMCV05462 Hearing Date: July 9, 2026 Dept: P

Tentative

Ruling

Meryle

Moroney v. Binko Corp., et al., Case No. 23SMCV05462

Defendants'

Demurrer and Motion to Strike

Hearing

Date: July 9, 2026

Background

Plaintiff

Meryle Moroney sues Defendants Bink Corp., Serenity Care Health Corporation; Serenity Care Health Group; Specialized Community Healthcare Company; and Bioseh Ogbechie for wrongful death, elder abuse, and negligence. Moroney alleges that Defendants owned and operated the Bentley Manor assisted living facility, located at 3425 McLaughlin Ave., Los Angeles, CA 90066. (Complaint, ¶ 4.) Moroney alleges that her father, Carl Moroney, was a resident at Bentley Manor and that Defendants' negligence caused her father's death on November 22, 2023. (Complaint, ¶ 23.)

On

November 20, 2024, Moroney filed the complaint.

On October

11, 2024, Moroney entered default against Binko Corp., Serenity Care Health Corporation, Specialized Community Healthcare Company, Bioseh Ogbechie, and Serenity Care Health Group.

On March

19, 2025, the Court granted default judgment for Moroney for \$10,001,503.08.

On August

4, 2025, Defendants Serenity Care Health Group and Bioseh Ogbechie ("Ogbechie Defendants") moved to set aside default. On December 8, 2025, the Court set aside the default judgment against the Ogbechie Defendants.

On

February 23, 2026, the Ogbechie Defendants filed a demurrer, arguing that Moroney failed to state a claim for wrongful death, elder abuse, and negligence because the Ogbechie Defendants do not own or operate Bently Manor, and that Moroney failed to state a claim for a "survival action" because it is not a recognized cause of action. On June 25, 2026, Moroney filed opposition, arguing that the complaint alleges sufficient facts to state claims for wrongful death, elder abuse, and negligence. On July 1, 2026, the Ogbechie Defendants replied.

Arguments

The

Ogbechie Defendants primarily contend that Moroney does not state a claim against them because they are not the licensed operators of Bentley Manor and therefore do not owe her or the decedent a duty of care. They also argue that Moroney does not have standing to sue for wrongful death and negligence on behalf of her deceased father because she did not file a declaration or affidavit under Code Civ. Proc. § 377.32 stating that she is her father's successor in interest alongside the complaint. (Demurrer, p. 3.) Next, the Ogbechie Defendants argue that Moroney's claims for wrongful death and negligence fail to state a claim and are uncertain because she does not allege specific facts showing that the Ogbechie Defendants caused her father's death or owed her father a duty of care. (Demurrer, p. 5.) Then, the Ogbechie Defendants argue that Moroney's claim for elder abuse fails to state a claim and is uncertain because it does not plead elder abuse with specificity. The Ogbechie Defendants argue that, as a statutory cause of action, elder abuse must be plead with specificity, citing *Carter v. Prime Healthcare Paradise*

Valley (2011) 198 Cal.App.4th 396, 410. (Demurrer, p. 7.) The Ogbechie Defendants argue that the complaint does not allege malice, oppression, or fraud, or involvement by a managing agent as required for an elder abuse claim. (Id. at pp. 8-9.) Finally, the Ogbechie Defendants argue that the complaint fails to state a claim for punitive damages and ask that the Court sustain their demurrer without leave to amend. (Id. at pp. 10-11.)

In opposition, Moroney argues that she inadvertently did not attach the Code Civ. Proc. § 377.32 declaration, and that she has filed a notice of errata correcting the issue. (Opposition, p. 4.) Moroney argues that the Ogbechie Defendants seek an unnecessary level of detail in their motion, and that the complaint alleges negligence and causation with sufficient specificity. (Id. at p. 5.) Next, Moroney argues that the complaint alleges neglect within the meaning of the Elder Abuse Act, relying on *Delaney v. Baker* (1999) 20 Cal.4th 23, *Covenant Care Inc. v. Superior Court* (2004) 32 Cal.4th 771, and *Sababin v. Superior Court* (2006) 144 Cal.App.4th 81. (Id. at pp. 6-8.) Moroney argues that *Carter v. Prime Healthcare Paradise Valley*, supra, supports her claims and that she has alleged elder abuse with sufficient specificity. (Id. at pp. 8-9.) Moroney contends that the Ogbechie's arguments that the complaint fails to state claims against them because they do not own Bentley Manor are arguments on the merits that should be rejected at the demurrer stage because Moroney brings these claims against defendants as alter egos of each other. (Id. at p. 10.) Finally, Moroney argues that her survival claim is properly pled and requests leave to amend if any portion of the Ogbechie Defendants' demurrer is sustained. (Id. at pp. 12-13.)

In reply, the Ogbechie Defendants argue that Moroney does not address the core of their demurrer, which is that they are not the licensed operator of Bentley Manor. (Reply, p. 1.) The Ogbechie Defendants then argue that Moroney's belated filing of the § 377.32 declaration does not moot the issue but admits that the complaint was deficient as filed. (Ibid.) The Ogbechie Defendants argue that Moroney's causation allegations in support of her negligence claim are conclusory. (Id. at p. 2.) As to Moroney's claim for elder abuse, the Ogbechie Defendants distinguish Plaintiff's caselaw on the grounds that the Ogbechie Defendants are not the operators of Bentley Manor. (Id. at p. 4.) The Ogbechie Defendants also argue that the complaint does not allege recklessness or corporate authorization/ratification of Bentley Manor's alleged negligence. (Id. at p. 5.) Finally, the Ogbechie Defendants request that the demurrer be sustained

without leave to amend. (Id. at p. 6-7.)

Request
for Judicial Notice

The
Ogbechie Defendants request notice of “Ex. A: California Department of Social Services Search Result for Bentley Manor showing Licensee as “Specialized Community Healthcare Company” (last visit February 23, 2026), available at < <https://www.ccl.dss.ca.gov/carefacilitysearch/FacDetail/198320301>>” (RJN, p. 1.)

Notice is
GRANTED under Evid. Code § 452(h).

Demurrer

In a demurrer proceeding, the defects in the complaint must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

Before filing a demurrer, parties must meet and confer in person or by phone. (Code Civ. Proc. § 430.41.)

Analysis

Procedure

a.

Meet

and Confer

The

parties satisfied the meet and confer requirement by discussing this demurrer by phone on February 5, 2026. (Jauregui Decl., ¶ 2.)

b.

Code

Civ. Proc. § 377.32

A

declaration or affidavit under Code Civ. Proc. § 377.32 must be filed alongside a complaint brought by or continued by a decedent's successor in interest.

(Code Civ. Proc. § 377.32(a).) Failure to do so could subject the action to a plea in abatement. (Aghaian v. Minassian (2021) 64 Cal. App. 5th 603, 614.) However, the Ogbechie Defendants cite no authority for the proposition that a demurrer to a survival action be sustained for failure to attach the required affidavit where the Plaintiff has later filed the declaration. (cf. Aghaian v. Minassian, supra, 64 Cal.App.5th

[“Section 377.32, however, ‘does not require that the affidavit be filed as a condition precedent to commencing or continuing the action’”].) Moroney has filed the affidavit, correcting the defect. Failure to file the affidavit earlier is not grounds for sustaining the Ogbechie Defendants' demurrer.

Moroney's

Complaint

a.

Moroney's

alter ego allegations

The

Ogbechie Defendant's primary argument rests on the fact that neither Serentiy Care Health Group nor Bioseh Ogbechie are the registered licensed operators of Bentley Manor. (RJN, Exhibit A.) Defaulted defendant Specialized Community

Healthcare Company is the licensed operator. In opposition, Moroney argues that she brings this action against the Ogbechie Defendants as Specialized Community Healthcare Company's alter egos. (Opposition, p. 10.)

To plead

alter ego liability, a complaint must allege facts showing "that there is such a unity of interest and ownership that the individuality of the one corporation and the owner or owners of its stock has ceased, and further, that the observance of the fiction of separate existence would under the circumstances sanction a fraud or promote injustice." (*Hennessey's Tavern, Inc. v. American Air Filter Co.* (1988) 204, Cal.App.3d 1351, 1358.)

Moroney

alleges facts showing a unity of interest between Specialized Community Healthcare Company and Serenity Care Health Group: she alleges that Defendants Specialized Community Healthcare Company and Serenity Care Health Group are staffed by the same employees, managers, and officers, and that Arlene Media served as secretary of both Specialized Community Healthcare Company and Serenity Care Health Group, and that both companies have the same registered agent. (Complaint, ¶ 6.) Moroney also alleges that Defendant Bioseh Ogbechie is the registered CEO of Serenity Care Health Group, which lists Bentley Manor as one of its facilities online. (*Ibid.*) Moroney alleges that there is no true separation between the companies, and that Defendant Bioseh Ogbechie is the head of all the corporate defendants, including Specialized Community Healthcare Company. (*Id.* at ¶ 9.) Taken together, the complaint alleges a unity of interest. Moroney also alleges that injustice would result if the Defendants are treated as separate entities because they are playing "a shell game" to preclude Moroney's recovery. (*Id.* at ¶ 8.) Moroney properly alleges that Specialized Community Healthcare Company is an alter ego of the Ogbechie Defendants.

All

Defendants alleged to be alter egos of each other are liable for claims stated against one alter ego entity. (See *Hennessey's Tavern Inc. v. American Air Filter Co.*, *supra*, 204 Cal.App.3d at 1358 ["An alter ego defendant has no separate primary liability to the plaintiff. Rather, plaintiff's claim against the alter ego defendant is identical with that claimed by plaintiff against the already-named defendant"].) The fact that the Ogbechie Defendants are not the registered operators of Bentley Manor is therefore not grounds for sustaining a demurrer.

b.

Wrongful

Death and Negligence

The

elements of a claim for wrongful death are (1) a wrongful act or neglect on the part of one or more persons; (2) causing the death of another. (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 404 (citing Code Civ. Proc., § 377.60).) In any wrongful death action resulting from negligence, the complaint “must contain allegations as to all the elements of actionable negligence.” (*Jacoves v. United Merchandising Corp.* (1992) 9 Cal. App.4th 88, 105.) To state a claim for negligence, a plaintiff must allege that (1) the defendant owed the plaintiff a duty of care, (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff’s damages or injuries. (*Peredia v. HR Mobile Services, Inc.* (2018) 25 Cal.App.5th 680, 687.)

Moroney

alleges that her father, Carl Moroney, was a resident at Bentley Manor between March, 2022, and his death on November 22, 2022. (Complaint, ¶ 15.) Moroney alleges that Defendants had care or custody of her father. (*Id.* at ¶ 16.) Moroney alleges that she agreed to pay an additional fee so that Bentley Manor staff would stay in her father’s room at night to ensure his safety and provide any needed assistance. (*Id.* at ¶ 21.) Moroney alleges that despite Defendants’ obligations to her father, he developed a sore on his buttocks, a severe scabies infestation, developed a respiratory illness, and ultimately died because of his delayed care. (Complaint, ¶¶ 27, 32 [“Defendants’ breaches of care were the proximate cause of the DECEDENT’s injuries, death, and damages”].)

The

Ogbechie Defendants argue that these allegations do not establish that the Ogbechie Defendants caused Moroney’s father’s death, nor do they establish that the Ogbechie Defendants owed the decedent a duty of care. (*Demurrer*, p. 5.) The Court’s finding that the complaint adequately alleges that the Ogbechie Defendants are Specialized Community Healthcare Company’s alter egos disposes of these arguments. Moroney’s allegations against the Ogbechie Defendants’ alter egos are made equally against the Ogbechie Defendants. Additionally, Moroney’s causation allegations are sufficient because there is no heightened pleading standard for negligence claims. (See Complaint, ¶¶ 27, 32

["Defendants' breaches of care were the proximate cause of the DECEDENT's injuries, death, and damages"].)

The

Complaint states a claim for wrongful death because it alleges duty, breach, causation, damages, and Mr. Moroney's death. (See Complaint, ¶¶ 15, 21, 27, 30, 32.) The Ogbechie Defendants' demurrer to Moroneys' Claims for Wrongful Death and Negligence are OVERRULED.

c.

Elder

Abuse

To state a

claim for neglect under the elder abuse act, "the plaintiff must allege (and ultimately prove by clear and convincing evidence) acts establishing that the defendant: (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care [citation]; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs [citation]; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult's basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) [citation]. The plaintiff must also allege (and ultimately prove by clear and convincing evidence) that the neglect caused the elder or dependent adult to suffer physical harm, pain or mental suffering. [citation] Finally, the facts constituting the neglect and establishing the causal link between the neglect and the injury "must be pleaded with particularity," in accordance with the pleading rules governing statutory claims. [citation]." (Carter v. Prime Healthcare Paradise Valley, LLC (2011) 198 Cal.App.4th 396,406-407.)

Professional

negligence is not actionable under this provision of the elder abuse act. Neglect is distinguished from professional negligence by recklessness or malice: "if the neglect is 'reckless,' or done with 'oppression, fraud or malice,' then the action falls within the scope of section 15657 and as such cannot be considered simply 'based on ... professional negligence' within the meaning of section 15656.2." (Delaney v. Baker (1999) 20 Cal.4th 23, 35

[upholding a jury's determination that a nursing home's failure to prevent a patient's death from complications arising from extremely severe pressure ulcers was actionable neglect and not just professional negligence because there was substantial evidence that the facility knew about her condition and failed to act].)

A

plaintiff must allege specifically what the care custodian did to cause the elder individual harm. Allegations that a patient was admitted to the hospital three times, first for chest pain, then for pneumonia, sepsis, and pressure ulcers, and finally for complications related to the pneumonia did not state a claim for neglect under the elder abuse act where they did not allege that the hospital denied services or withheld necessary treatment. (*Carter v. Prime Healthcare Paradise Valley, LLC*, supra, 198 Cal.App.4th at 407-408.) This case suffers from the same defect.

Here,

Moroney does not allege what treatment Bentley Manor withheld or what services it denied her father. With one exception, Moroney's allegations of neglect are entirely conclusory. (See Complaint, ¶¶ 35-42.) Moroney does allege that the Ogbechie Defendants denied her father overnight supervision but does not allege how this caused Mr. Moroney's death. (Complaint, ¶ 24.) Nor is causation obvious from the complaint's description of Mr. Moroney's ailments-- neither pressure ulcers, scabies, or respiratory illnesses is obviously attributable to the defendants' failure to stay with Mr. Moroney overnight. (Complaint, ¶¶ 27-28.) The complaint does not meet the particularity standard for pleading causation on an action for neglect under the elder abuse act.

The

Ogbechie Defendants also contend that this is a professional negligence action. Moroney alleges that the Ogbechie Defendants acted with recklessness, oppression, and/or malice. (Complaint, ¶ 41.) Though the allegation is conclusory, it would be premature to describe the alleged neglect as only professional negligence without further detail.

The

Ogbechie Defendant's demurrer to Moroney's claim for elder abuse is SUSTAINED.

d.

Survival

Moroney

does not contend that her survival claim is a separate cause of action. A plaintiff may bring a survival claim where the plaintiff alleges that they are the decedent's successor-in-interest and where the plaintiff alleges that the decedent suffered injuries before his death as a result of the defendants' conduct. (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, fn. 28.). Moroney alleges those facts. (See Complaint, ¶ 27.)

The

Ogbechie Defendants' demurrer to Plaintiff's survival claim is **OVERRULED**.

e.

Leave

to Amend

Since the

Court sustains the Ogbechie's demurrer to Plaintiff's elder abuse claim for lack of detail, leave to amend is appropriate.

Conclusion

The

Ogbechie Defendants' demurrer to Plaintiffs' claims for wrongful death, elder abuse, and survival are **OVERRULED**.

The

Ogbechie Defendants' demurrer to Plaintiff's claim for elder abuse is **SUSTAINED** with leave to amend.

The

Ogbechie Defendants also move to strike treble damages arising from Plaintiff's elder abuse claim. Since the Court sustains the Ogbechie Defendants' demurrer to plaintiff's claim for elder abuse with leave to amend, the motion to strike is moot.